QUANTUM BUSINESS SOLUTIONS, LLC

Data Processing Agreement

Between Van Ausdall & Farrar, Inc. and Quantum Business Solutions, LLC

DRAFT – Yellow bracketed items must be confirmed or completed. Have counsel review before signing or sending.

This Data Processing Agreement (the "**DPA**") is entered into as of [date] (the "**Effective Date**") between:

Van Ausdall & Farrar, Inc., a [Indiana] corporation with offices at 6430 East 75th Street, Indianapolis, Indiana 46250 ("**Client**"); and

Quantum Business Solutions, LLC, a [South Dakota] limited liability company with offices at 1809 West Parkwood Circle, Sioux Falls, SD 57108 ("**Quantum**").

This DPA supplements the [Master Services Agreement / Terms and Conditions / Statement of Work dated ____] between the parties (the "**Services Agreement**") and applies when Quantum processes Client Personal Data in providing the services.

1. Definitions

1.1 "**Applicable Data Protection Laws**" means all privacy and data protection laws that apply to the processing of Client Personal Data, including U.S. state privacy and data security laws (such as the California Consumer Privacy Act as amended, and the Indiana Consumer Data Privacy Act) and, where applicable, the EU and UK General Data Protection Regulations.

1.2 "**Client Personal Data**" means personal information relating to an identified or identifiable individual that Quantum processes on behalf of Client in connection with the services, such as CRM contacts, customer and prospect records, and employee contact details.

1.3 "**Client Data**" means Client Personal Data and all other data, documents and content of Client that Quantum accesses or receives to provide the services.

1.4 "**Security Incident**" means a confirmed breach of security leading to the accidental or unlawful destruction, loss, alteration, unauthorized disclosure of, or access to, Client Personal Data in Quantum's or its subprocessors' possession or control.

1.5 "**Subprocessor**" means a third party engaged by Quantum that processes Client Personal Data. A platform that Client itself licenses and directs (for example Client's own HubSpot account) is not Quantum's Subprocessor.

1.6 The terms "controller", "processor", "business", "service provider", "process", "personal data" and "sell/share" have the meanings given in Applicable Data Protection Laws.

2. Roles and scope

2.1 As between the parties, Client is the controller (or business) and Quantum is the processor (or service provider) of Client Personal Data.

2.2 The subject matter, duration, nature, purpose, data types and data subjects are described in **Exhibit A**.

2.3 Where Quantum works inside systems that Client owns and licenses, Client is responsible for the configuration, permissions and security of those systems. Quantum will use only the access Client grants.

3. Quantum's obligations

3.1 **Instructions.** Quantum will process Client Personal Data only on Client's documented instructions, which include the Services Agreement and this DPA, and for the purpose of providing the services. Quantum will tell Client if it believes an instruction violates Applicable Data Protection Laws.

3.2 **Restrictions.** Quantum will not (a) sell or share Client Personal Data; (b) retain, use or disclose it for any purpose other than performing the services or as permitted by law, including for any commercial purpose of its own; (c) retain, use or disclose it outside the direct business relationship between the parties; or (d) combine it with personal data from other sources, except as the law allows for a service provider. Quantum certifies that it understands and will comply with these restrictions.

3.3 **Confidentiality.** Quantum will ensure that every person authorized to process Client Personal Data (employees and contractors) is bound by written confidentiality obligations and has completed security awareness training.

3.4 **Security.** Quantum will implement and maintain the technical and organizational measures described in **Exhibit B** and in Quantum's Information Security Overview, appropriate to the risk of the processing. Quantum may update its measures if the level of protection is not reduced.

3.5 **Assistance.** Taking into account the nature of the processing, Quantum will give Client reasonable assistance (a) in responding to requests from individuals to exercise their privacy rights, and promptly forward to Client any such request it receives directly, without responding except to acknowledge receipt; and (b) with security, breach notification, data protection assessments and consultations with regulators.

3.6 **Location.** Quantum will process Client Personal Data in the United States unless Client agrees otherwise in writing. If a transfer outside the U.S. or from the EU/UK becomes necessary, the parties will put an appropriate transfer mechanism in place first.

3.7 **AI tools.** Quantum will not use Client Personal Data to train or improve any artificial intelligence model, and will use AI tools with Client Personal Data only under business or enterprise terms that prohibit the provider from doing so.

4. Subprocessors

4.1 Client gives general authorization for Quantum to use the Subprocessors listed in **Exhibit C**.

4.2 Quantum will give Client at least 30 days' written notice (email is sufficient) before adding or replacing a Subprocessor. Client may object on reasonable data protection grounds within that period. The parties will work in good faith to resolve the objection; if they cannot, Client may terminate the affected services and receive a pro-rata refund of prepaid fees for the terminated portion.

4.3 Quantum will bind each Subprocessor to written data protection terms no less protective than this DPA in all material respects and remains responsible for its Subprocessors' performance.

5. Security incidents

5.1 Quantum will notify Client without undue delay, and in any event within **72 hours**, after confirming a Security Incident, at Client's designated security contact in Exhibit A.

5.2 The notice will describe, to the extent known: the nature of the incident; the categories and approximate number of individuals and records affected; the likely consequences; and the measures taken or proposed. Quantum will supplement the notice as information becomes available.

5.3 Quantum will promptly take reasonable steps to contain and remediate the incident, cooperate with Client's investigation, and provide information Client reasonably needs to meet its legal notification duties. Client controls the content and timing of any notice to individuals or regulators about Client Personal Data, except where Quantum is required by law to notify.

5.4 Quantum's notification or response is not an admission of fault or liability.

6. Return and deletion

6.1 Within 30 days after the end of the services, or earlier on Client's written request, Quantum will return Client Data in a commonly used format and then delete it from Quantum's systems and instruct Subprocessors to do so.

6.2 Copies in routine backups will be deleted in the ordinary backup cycle, not later than 90 days after the end of the services, and remain protected under this DPA until deleted. Quantum may retain data it is legally required to keep, subject to this DPA.

6.3 On request, Quantum will confirm deletion in writing.

7. Audit and verification

7.1 On request, and no more than once every 12 months (unless a Security Incident occurs), Quantum will provide information reasonably necessary to show compliance with this DPA, including its Information Security Overview, a completed security questionnaire, and relevant third-party reports of its Subprocessors (such as SOC 2 reports) to the extent Quantum may share them.

7.2 If that information does not reasonably satisfy Client, Client may audit Quantum's relevant controls on 30 days' written notice, during business hours, subject to confidentiality, at Client's cost, and in a way that does not unreasonably disrupt Quantum's business or expose other clients' data. Client may conduct an audit at any time after a Security Incident affecting its data.

8. Client's responsibilities

8.1 Client is responsible for the lawfulness of its instructions and of its collection and provision of Client Personal Data, including any required notices and consents.

8.2 Client will not provide Quantum with sensitive categories of data (for example payment card data, government ID numbers, health information or biometric data) unless the parties first agree in writing on additional safeguards.

8.3 Client will manage user access to its own systems and promptly revoke Quantum's access when no longer needed.

9. General

9.1 **Term.** This DPA starts on the Effective Date and continues for as long as Quantum processes Client Personal Data. Sections 5, 6 and 9 survive.

9.2 **Liability.** Each party's liability under this DPA is subject to the limitations and exclusions of liability in the Services Agreement. [Counsel: confirm whether a super-cap applies to data breaches.]

9.3 **Order of precedence.** If there is a conflict, this DPA controls over the Services Agreement regarding the processing of Client Personal Data. Nothing in this DPA transfers ownership of either party's intellectual property; Quantum's methodologies, templates and tooling remain Quantum's, and Client Data remains Client's.

9.4 **Changes in law.** The parties will work in good faith to amend this DPA if required by a change in Applicable Data Protection Laws.

9.5 **Governing law and disputes.** The governing law and venue provisions of the Services Agreement apply. [If none: South Dakota law; courts in Minnehaha County, South Dakota.]

9.6 **Counterparts.** This DPA may be signed in counterparts and electronically.

The parties have caused this DPA to be signed by their authorized representatives.

VAN AUSDALL & FARRAR, INC.

By: _____

Name: _____

Title: _____

Date: _____

QUANTUM BUSINESS SOLUTIONS, LLC

By: _____

Name: Shawn Peterson

Title: Chief Executive Officer

Date: _____

Exhibit A – Details of Processing

Item	Detail
Subject matter	Consulting, implementation and support services under the Services Agreement, including website and CRM (HubSpot) build, migration and optimization. [confirm]
Duration	The term of the Services Agreement plus the return/deletion period in Section 6.
Nature of processing	Access, storage, organization, transfer, configuration, transformation, migration, analysis and deletion of data within the services.
Purpose	To perform the services Client requests, including building, testing, supporting and optimizing Client's systems.

Item	Detail
Categories of data subjects	Client's customers, prospects, website visitors, leads, vendors, and employees and business contacts.
Types of personal data	Names, business and personal contact details, job titles, employer, communication and engagement history, form submissions, marketing preferences, account and deal information, and web analytics identifiers. No sensitive data unless agreed under Section 8.2.
Other Client Data	Documents, process documentation, configuration details, and content provided for the engagement.
Client security contact	[name, email, phone]
Quantum security contact	[security@thequantumleap.business]; Shawn Peterson, CEO

Exhibit B – Technical and Organizational Measures

Quantum maintains at least the following measures, described in more detail in its Information Security Overview:

- Multi-factor authentication on all business-critical systems; single sign-on where supported; unique named accounts; password manager and scheduled credential rotation.
- Role-based, least-privilege access by client; quarterly access reviews; same-day deprovisioning at offboarding.
- Spam, phishing and malware filtering for email; SPF, DKIM and DMARC.
- Encryption in transit (TLS 1.2+) and at rest (via provider platforms); full-disk encryption and screen lock on devices used for client work.
- Automated backups of business-critical systems with restoration testing.
- Security awareness training for all employees and contractors at onboarding and at least annually.
- Written confidentiality and intellectual property agreements for all personnel.
- Documented incident response process and 72-hour client notification.
- Vendor review before a service is used with client data.
- Logical separation of client data; minimization and defined retention and deletion.

Exhibit C – Authorized Subprocessors

[Confirm which of these actually process Client Personal Data for Van Ausdall & Farrar, and delete the rest. Add any others (for example project management, e-signature, or AI providers).]

Subprocessor	Purpose	Location	Security assurance
Microsoft 365 (Microsoft Corp.)	Business email, calendar, file storage and collaboration	United States	SOC 2 Type II; ISO 27001
Supabase	Database and backend hosting for tools Quantum builds or uses [confirm]	United States [confirm region]	SOC 2 Type II

Subprocessor	Purpose	Location	Security assurance
Vercel	Hosting of web applications and tooling [confirm]	United States	SOC 2 Type II
Zapier	Workflow automation between business systems [confirm]	United States	SOC 2 Type II
Anthropic (Claude)	AI-assisted analysis and drafting under business/commercial terms with no training on inputs [confirm plan]	United States	SOC 2 Type II [confirm]
HubSpot, Inc.	Client's own CRM and website platform, licensed by and contracted directly with Client. Listed for transparency only; not Quantum's Subprocessor.	As configured by Client	SOC 2 Type II (Trust Center)